

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 2, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: Department 10 is fully open for in-person hearings. The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to have a court reporter, the appropriate form must be submitted. See <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV458112	Hai Huynh v. Bien Doan	Click LINE 1 or scroll down for ruling.
Line 2	25CV458546	Lingyi Zhang v. Lucina Egg Bank et al.	Click LINE 2 or scroll down for ruling.
Line 3	25CV459133	Bianca Andrade v. Aravind Rangaraj et al.	<u>Parties are ordered to appear.</u> Defendant Advanced Surgicare, LLC's motion to quash service of summons. (Code Civ. Proc., § 418.10.) Notice is proper and the motion is unopposed. The motion is supported by a declaration by defense counsel indicating that an individual delivered an incomplete summons, a civil case cover sheet, and the first page of the complaint to defendant's office. No proof of service of summons has been filed in this action. (Cal. Rules of Court, rule 3.110(b) [proof of service of summons "must be filed with the court within 60 days after the filing of the complaint"].) The motion is GRANTED. An order to show cause re plaintiff's failure to serve Advanced Surgicare, LLC's will take place on July 2, 2026 at 10:00 a.m. in Department 10. The court will prepare the order

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Line 4	24CV449537	Anna Demby v. FCA US, LLC et al.	Defendant FCA US, LLC's motion to compel the deposition of plaintiff Anna Demby. The moving party subsequently filed a notice of withdrawal of the motion. The motion is taken OFF CALENDAR.
Line 5	18CV333448	Sudni Foods, LLC et al. v. Christin Christudhas et al.	Plaintiff Sudni Foods, LLC's motion to vacate dismissal and enter judgment by stipulation. (Code Civ. Proc., § 664.6.) Notice is proper and the motion is unopposed. The parties signed two stipulations in 2020, under which defendants would make installment payments to resolve the case. Plaintiffs dismissed the action based on those agreements, with the court retaining jurisdiction to enforce the agreements under Code of Civil Procedure section 664.6. A declaration by plaintiff's counsel indicates plaintiffs received \$34,650, and then defendants stopped making payments. On good cause shown, the motion is GRANTED. The dismissal is vacated and plaintiff is entitled to judgment. Plaintiff is entitled to the stipulated judgment of \$82,944.33 (consisting of a principal balance of \$117,594.33, less payments received of \$34,650). Moving party to submit proposed order and proposed judgment, indicating damages of \$82,944.33.
Line 6	22CV409227	George Centeno v. General Motors, LLC	Plaintiff George Centeno's motion for attorney fees. Notice is not proper; there is no proof of service. The matter is CONTINUED to January 21, 2027, at 9:00 a.m. in Department 10. Plaintiff is ordered to serve all documents related to the motion, including an updated notice indicating the new hearing date. The court will prepare the order.

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Line 7	25CV470875	Deharo Mechanical, Inc. v. San Jose Biocube IV, LLC et al.	Plaintiff Deharo Mechanical, Inc.’s motion to consolidate this action with case No. 25CV471036. Notice is proper and the motion is opposed by defendant Valley Tech Centre Owner, LLC. “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048; <i>Villa Zinfandel, LLC v. Bearman</i> (2025) 116 Cal.App.5th 848, 862.) Plaintiff’s reply acknowledges that there are “no fewer than five cases involving the Subject Premises” pending in this court. (Reply, at p.3:23-28.) But plaintiff provides no explanation for why the current motion seeks to consolidate only two of those cases. Nor does plaintiff explain why a piecemeal consolidation of these two cases serves judicial economy when consolidation of additional cases may later be appropriate. Consolidation is premature at this time. The motion is DENIED WITHOUT PREJUDICE. The parties are ordered to meet and confer in advance of the case management conference scheduled for October 27, 2026, to discuss the possibility of consolidating these (and perhaps other) cases that all involve the same subject premises. The court will prepare the order.
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LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV434168	Toll Bros, Inc. v. Lefco, Inc. a California Corporation	Order of examination: <u>parties ordered to appear.</u>
Line 2	24CV434168	Toll Bros, Inc. v. Lefco, Inc. a California Corporation	Order of examination: <u>parties ordered to appear.</u>
Line 3	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. (IDC) et al.	Order of examination: <u>parties ordered to appear.</u>
Line 4	26CV489886	Good Samaritan Hospital, L.P. et al. v. County of Santa Clara	Application of Samuel Givertz to appear <i>pro hac vice</i> for defendant County of Santa Clara. No objection filed. Good cause appearing, the application is GRANTED. Moving party to submit proposed order.

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Calendar Line 1

Case Name: Hai Huynh v. Bien Doan

Case No.: 25CV458112

This is a defamation action brought by plaintiff Hai Huynh (Huynh) against defendant Dien Doan (Doan) based on Doan telling a third-party, Betty Duong (Duong), that Huynh was a “convicted felon.” Huynh’s original complaint, alleging a single cause of action for defamation per se, was filed in February 2025. Attached to the complaint as exhibit A was part of a transcript of a hearing in a prior civil harassment case, *City of San Jose v. Huynh*, case No. 24CH012393.

Doan previously filed both a special motion to strike the complaint (Code Civ. Proc., § 425.16) and a demurrer to the complaint. Both were heard by the court (Judge Chung) in September 2025. The court denied the anti-SLAPP motion. The court found that the complaint arose from protected activity under Code of Civil Procedure section 425.16, subdivision (e)(4). On the second prong of the analysis, the court rejected Doan’s arguments that the alleged statements were not sufficiently described and that the alleged statements would have been privileged under Civil Code section 47, subdivision (a). (See Sept. 19, 2025 order at pp. 9:11-10:18.) The court also found that “Huynh has submitted evidence in the form of declarations and testimony from the prior civil harassment proceeding that is sufficient to make a ‘prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ This includes the sworn testimony of Duong that at a funeral service in either February 2024 or ‘towards the end of 2023 or the fall season’ Doan ‘had told me that Hai Huynh was a bad guy and that he was a convicted felon and that I should be careful.’ (Complaint, Exhibit A, p. 129:10-15; see also Declaration of Betty Duong, ¶¶ 9-12.)” (*Id.* at pp. 8:24-9:5, internal citation omitted.)

The court expressly found that Huynh had shown sufficient prima facie evidence of malice: “Huynh has submitted evidence that even prior to making the allegedly defamatory statement to Duong, Doan had told others that Huynh was a ‘convicted felon,’ Doan had been told this was not true, he had been asked to stop making this statement, but he nevertheless insisted on repeating it to Duong. (Declaration of Thi Mong Hoang, ¶¶ 5-8; Declaration of Ha Phong Duong, ¶ 7; Declaration of Hai Huynh, ¶¶ 11-12, 16-18.) In addition, Huynh points to evidence in the public record that would have made clear—upon even a cursory examination—that Huynh was never convicted of a felony. (Huynh Declaration, ¶¶ 25-26.) This is sufficient to make a prima facie showing of malice.” (Sept. 19, 2025 order at pp. 10:20-11:6.)

The court sustained Doan’s demurrer to the defamation cause of action with leave to amend because “Huynh has pointed to sufficient evidence to make a prima facie showing of malice in response to the anti-SLAPP motion. But none of this evidence is in the pleading itself.” (*Id.* at p. 15:14-16.) The court granted leave to amend based on the decision in “*Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 (*Nguyen-Lam*), which similarly involved a situation in which a plaintiff failed to plead malice adequately in her complaint but had sufficient evidence to prevail on the second prong of the anti-SLAPP analysis. In that case, the trial court granted leave to amend, and the Court of Appeal found no error in that ruling. Those are essentially the facts of the present case.” (*Id.* at p. 16:19-23.) The court takes judicial notice of Judge Chung’s order on its own motion. (Evid. Code, § 452, subd. (d).)

Doan did not file a motion for reconsideration of the September 2025 order; nor did he appeal from that order. The court's finding that Hyunh has sufficiently shown a probability of prevailing on his defamation claim remains in effect and the September 2025 order is presumed correct. The decision to grant Huynh leave to amend the allegations in the complaint and file a FAC has no bearing on that finding.

The operative first amended complaint was filed in October 2025. The FAC alleges a single cause of action for defamation per se. The FAC, at paragraphs 50 through 62, adequately alleges malice by Doan by alleging the facts that were previously stated only in the declarations submitted in opposition to the anti-SLAPP motion. A copy of the transcript from the prior civil harassment case, case No. 24CH012393, is once again attached as exhibit A. Attached as exhibit B are copies of a text message exchange between Huynh and Doan.

Now before the court is a renewed anti-SLAPP motion by Doan, which Hyunh opposes.

DISCUSSION

As an initial matter, there is no authority permitting a moving party to incorporate by reference arguments made in previously filed motions. The court has not considered any such incorporated documents or arguments in deciding Doan's motion. (See Doan memorandum at p. 2, fn. 1, and p. 5, fn. 2.)

Request for Judicial Notice

Hyunh filed a request for judicial notice with his opposition. "Judicial notice may not be taken of any matter unless authorized or required by law." (Evidence Code §450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the Court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Hyunh's request for judicial notice of "[a]ll pleadings and documents filed in this case," and of a February 2026 court order in a different lawsuit involving Doan is denied as irrelevant to the material issue before the court on this motion. To the extent the requests for judicial notice made in the body of Huynh's opposition brief could be considered separate requests, they are also denied. (Cal. Rules of Court, rule 3.1113(l).)

The Renewed Anti-SLAPP Motion Must Be Denied

Section 1008 of the Code of Civil Procedure is the exclusive means for a party to call upon a court to revisit interim rulings. (Code Civ. Proc., § 1008, subd. (e) (unspecified statutory references are to this Code); *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885.) Section 1008 describes two types of motion: (1) a motion for reconsideration, and (2) a motion for renewal.

Motions for reconsideration are governed by section 1008, subdivision (a), which requires that any such motion be (1) filed "within 10 days after service upon the party of written notice of entry of the order" of which reconsideration is sought, (2) supported by new or different facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion and the respects in which the new motion differs from the first. (§ 1008, subd. (a).)

Motions for renewal are governed by section 1008, subdivision (b), which echoes the requirements for motions for reconsideration with the exception that motions for renewal are not subject to the 10-day time limit. The provision provides that “[a] party who originally made an application for an order which was refused in whole or part . . . may make a subsequent application for the same order upon new or different facts, circumstances, or law.” (§ 1008, subd. (b).) Section 1008, subdivision (b), thus applies when the moving party seeks the same order that it sought previously based on purportedly new or different facts, circumstances, or law.

An “order” is defined as a “direction of a court or judge, made or entered in writing, and not included in a judgment.” (§ 1003.) Thus, a party seeks the same order as it did in a previous motion when it requests the same relief in both motions. (*California Correctional Peace Officers Ass’n v. Virga* (2010) 181 Cal.App.4th 30, 43 [“We conclude that appellants’ second motion for attorney fees was a motion for ‘the same order’ (§ 1008, subd. (b)) as they sought in their first motion, because they sought *identical relief* in both motions.”]; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193 (*Sole*) [“The nature of a motion is determined by the nature of the relief sought, not by the label attached to it.”].)

For any motion under section 1008, the moving party must present “a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) According to the plain language of the statute, a court acts in excess of its jurisdiction if it grants a motion to reconsider or renew that is not based upon new or different facts, circumstances, or law. (§ 1008, subd. (e) [“This section specifies the court’s jurisdiction with regard to applications for reconsideration of its orders and renewals of previous motions, and . . . [n]o application to reconsider any order or for the renewal of a previous motion may be considered by any judge or court unless made according to this section.”]; *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

As the California Supreme Court has stated:

We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling (though any such communication should never be *ex parte*). . . . But a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section 437c, subdivision (f)(2), or 1008. The court need not rule on any suggestion that it should reconsider a previous ruling and, without more, another party would not be expected to respond to such a suggestion. . . . Unless the requirements of section 437c, subdivision (f)(2), or 1008 are satisfied, any action to reconsider a prior interim order must formally begin with the court on its own motion.

(*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108, internal citations omitted.)

Doan’s second anti-SLAPP motion is brought “on the grounds that Plaintiff’s Complaint is based on protected speech and fails to allege facts demonstrating that Plaintiff has a probability of prevailing on his claim for defamation.” (Notice of Motion at p. 1:9-10.) The current motion seeks the same relief as the prior motion. It is not based on new or different facts, circumstances, or law. It repeats arguments rejected by Judge Chung. And it does not

fully acknowledge Judge Chung's ruling on the second prong of the anti-SLAPP analysis. The instant motion does not meet the requirements for a motion under section 1008.

The supporting memorandum effectively admits that Doan is asking the court to revisit Judge Chung's ruling by arguing that "[a] renewed motion is permissible where amended pleadings alter the analysis." (Memorandum at pp. 4:26-5:2, citing *Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637 (*Newport Harbor II*)). But the analysis here has not been altered by the FAC. There are no new or different facts, circumstances, or law here related to the anti-SLAPP motion. The sufficiency of the defamation allegations in both the original complaint and the FAC are irrelevant to the court's finding that Hyunh had submitted evidence showing a probability of prevailing on his defamation cause of action and had sufficiently made a prima facie showing of malice. Doan's renewed anti-SLAPP motion cannot and does not function as a demurrer to the FAC's defamation cause of action. Because the renewed motion is denied, Doan's request for attorney fees is likewise denied.

The facts of this case are distinguishable from those in *Newport Harbor II*, where a third amended complaint added two new causes of action for the first time. Based on that procedural posture, the Supreme Court determined those new causes of action could be the target of an anti-SLAPP motion despite the significant amount of litigation that had already taken place in the lawsuit. (*Newport Harbor II*, *supra*, 4 Cal.5th at p. 646.) "*Newport Harbor II* struck a balance by allowing late motions directed only at *new* causes of action to 'maximize[] the possibility the anti-SLAPP statute will fulfill its purpose while reducing the potential for abuse.'" (*Starview Property, LLC v. Lee* (2019) 41 Cal.App.5th 203, 212.)

Hyunh argues that the current renewed motion is frivolous and that he should be awarded attorney fees. (See Opposition at pp. 11:4-12:13.) "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5." (§ 425.16, subd. (c)(1).) A prevailing plaintiff must comply with the requirements of section 128.5 to obtain an order requiring the moving party to pay attorney fees. "Before awarding attorney fees to a plaintiff who has successfully opposed an anti-SLAPP motion, the court must find that the motion to strike is 'frivolous or is solely intended to cause unnecessary delay,' and the court must comply with the procedural provisions of section 128.5. (§ 425.16, subd. (c).) Section 128.5 requires notice in the moving or responding papers, an opportunity to be heard, and a written order reciting in detail the conduct or circumstances justifying the order." (*California Back Specialists Medical Group v. Rand* (2008) 160 Cal.App.4th 1032, 1037-1038 [holding that notice was sufficient where plaintiff raised the issue of attorney fees in opposition to the anti-SLAPP motion and provided amount of attorney fees sought].)

Hyunh has not provided Doan with notice of the amount of attorneys' fees requested or evidence of such fees. The court will not award attorney fees at this time.

CONCLUSION

Hyunh's request for judicial notice is denied.

Doan's renewed anti-SLAPP motion is denied.

Huynh's request for attorney fees is denied. This ruling is without prejudice to Huynh's ability to file a noticed motion for attorney fees. (§§ 425.16, subd. (c); 128.5.)

The court will prepare the order.

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Calendar Line 2

Case Name: Lingyi Zhang v. Lucina Egg Bank et al.

Case No.: 25CV458546

This is an action for breach of contract and fraud brought by self-represented plaintiff Lingyi Zhang (Zhang) against defendants Lucina Egg Bank (Lucina) and Reproductive Sciences Medical Center (RSMC). The dispute relates to a contract between the parties about purchasing human ova.

The original complaint was filed in February 2025. Lucina previously brought a demurrer to the complaint that Zhang did not oppose. The demurrer was heard by the court (Judge Chung) in September 2025. The court sustained the demurrer to the entire complaint on grounds of uncertainty and failure to state sufficient facts with 20 days' leave to amend. The court also urged Zhang to seek the assistance of counsel. (See Sept. 18, 2025 Order re: Demurrer to Complaint, which the court takes judicial notice of under Evidence Code section 452, subdivision (d).)

The operative first amended complaint (FAC) alleges five causes of action: (1) violation of the Consumer Legal Remedies Act (CLRA, Civ. Code, § 1750 et seq.); (2) false advertising (Bus. & Prof. Code, § 17500 et seq.); (3) unfair competition (Bus. & Prof. Code, § 17200 et seq.); (4) breach of written contract; and (5) fraud. There is a form complaint exemplary damages attachment attached to the FAC. There are also several documents attached to the FAC as exhibits 1-17, including a copy of the alleged written contract (exhibit 1).

At issue is a demurrer to the FAC by Lucina and RSMC (hereafter, Defendants), which Zhang opposes.

LEGAL STANDARDS FOR DEMURRERS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declaration from defense counsel Ashton Stine only to the extent that it describes the meet and confer efforts required by statute. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.) The court has not considered arguments made for the first time in Defendants’ reply.

DISCUSSION

Defendants' notice of demurrer states that they challenge the FAC "on the grounds that the First Amended Complaint is uncertain and fails to state sufficient facts to constitute a cause of action." (Notice of Demurrer and Demurrer at p. 2:9-10.) The Demurrer itself more clearly specifies that Defendants challenge each cause of action on grounds of uncertainty and failure to state sufficient facts. (*Id.* at pp. 3:5-4:2.)

Uncertainty

"[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that defendant cannot reasonably respond.' 'A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.'" (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 [internal citations omitted].)

Defendants' demurrer based on uncertainty is overruled. Defendants' arguments that each cause of action fails to state sufficient facts indicates that they understood each cause of action sufficiently to be able to respond. The FAC does not reach the level of incomprehensibility required to sustain a demurrer on this ground.

Failure to State Sufficient Facts

First Cause of Action

"Section 1750 et seq. constitute the CLRA. Its remedies are non-exclusive, and the Legislature intended that it be 'liberally construed' to promote its purposes, 'which are to protect consumers against unfair and deceptive business practices and to provide efficient and economical procedures to secure such protection.' According to the legislative history from 1970, the year of its enactment, the law was designed 'to provide affirmative remedies for consumers which will protect them from unscrupulous business practices while insulating responsible businessmen from spurious or vexatious lawsuits.'" (*Benson v. Southern California Auto Sales, Inc.* (2015) 239 Cal.App.4th 1198, 1205 (*Benson*), internal citations omitted.)

Civil Code section 1770 lists several acts and practices made unlawful by the CLRA. "Section 1780, subdivision (a), sets out the remedies available to a consumer who has suffered damage as a result of an act declared unlawful in section 1770. These are (1) actual damages, (2) injunctive relief, (3) restitution of property, (4) punitive damages, and (5) any other relief the court deems proper." (*Benson, supra*, 239 Cal.App.4th at p. 1211.) Civil Code section 1782, subdivision (a) "imposes a condition on a consumer's ability to sue for damages under the CLRA." (*Benson, supra*, 239 Cal.App.4th at p. 1206.) Prior to commencing an action for damages, the consumer "must give notice in writing of the particular CLRA violations and demand a correction, repair, replacement, or other rectification." (*Ibid.*) And "no action for damages may be maintained 'if an appropriate correction, repair, replacement, or other remedy is given, or agreed to be given within a reasonable time, to the consumer within 30 days after receipt of the notice.' This section was added early in the legislative process to insure that 'the consumer must give the merchant an opportunity to correct his mistake.'" (*Ibid.*)

The first cause of action seeks damages, but also admits that Zhang did not provide the required notice in writing before filing suit. It therefore fails to state sufficient facts supporting a claim for damages under the CLRA.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*) [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case. [Citation.]’”].) Zhang’s opposition does not meet this burden, as it argues that the demurrer should be overruled in its entirety and only requests leave to amend in a general fashion if the court desires additional detail. But Defendants’ suggestion that the first cause of action cannot be cured through amendment is unpersuasive. Zhang can seek injunctive relief under the CLRA.

Because it is not yet apparent to the court that granting further leave would be futile, Zhang is granted leave to amend the first cause of action. The amended complaint must be filed and served no later than July 7, 2026. The leave to amend is to allow Zhang to remove the request for damages (including punitive damages) and to remove any language suggesting that Zhang reserves the right to seek such damages. The court does not grant leave to add any additional parties or causes of action.

Second Cause of Action

The false advertising law bars “any advertising device . . . which is untrue or misleading.” (Bus. & Prof. Code, § 17500.) “Because this law and the fraudulent prong of the unfair competition law substantively overlap, the plaintiff’s burden under these provisions is the same: To prevail on a claim under the False Advertising Law, she must show that ‘members of the public are likely to be deceived’ and must do so as adjudged through the eyes of ‘the reasonable consumer.’” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1136.) A plaintiff must also allege an economic injury caused by the false advertising—advertising statements likely to deceive members of the general public under an objective reasonable consumer standard. (*Id.* at p. 1137.)

The general rule is that statutory causes of action must be pleaded with particularity. (*Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) When a statutory cause of action is alleged, “the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate.” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d. 1, 5.)

Defendants’ suggestion that individuals do not have standing to bring a false advertising claim is incorrect. “[U]nder the false advertising law . . . standing extends to ‘any person who has suffered injury in fact and has lost money or property as a result of a violation of this chapter’ (§ 17535).” (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 321-322.) Defendants’ assertion that Zhang cannot allege violations of Business and Professions Code section 17508 is an impermissible attempt to demur to only part of a cause of action. “[A]

general demurrer may not be sustained, nor a motion for judgment on the pleadings granted, as to a portion of a cause of action.” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905.)

As presently alleged, the second cause of action is not alleged with sufficient particularity. It does not sufficiently allege that Defendants made false claims with the intent to induce reasonable consumers to purchase Defendants’ services. (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 950.) It also does not sufficiently allege that Zhang suffered an economic injury from Defendants’ actions. The demurrer to the second cause of action on the ground that it fails to state sufficient facts is sustained with leave to amend.

Third Cause of Action

“Business and Professions Code section 17200 et seq. prohibits unfair competition, including unlawful, unfair, and fraudulent business acts. The UCL covers a wide range of conduct.” It embraces anything that can properly be called a business practice and that at the same time is forbidden by law. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143.) “By proscribing unlawful business practices, the UCL borrows violations of other laws and treats them as independently actionable. In addition, practices may be deemed unfair or deceptive even if not proscribed by some other law. Thus, there are three varieties of unfair competition: practices which are unlawful, or unfair, or fraudulent.” (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 48.)

Here, the FAC’s third cause of action is expressly based on the first and second causes of action. As those causes of action currently fail to state sufficient facts, the third cause of action likewise fails. Defendants’ demurrer to the third cause of action on the ground that it fails to state sufficient facts is sustained with leave to amend.

Fourth Cause of Action

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The FAC’s fourth cause of action is expressly based on the written contract attached as exhibit 1. Defendants’ sole argument in support of the demurrer to this cause of action is that it is barred by release language in the contract. “[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense.” (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.) Although exhibit 1 to the FAC contains the release language Defendants rely on, Defendants have not shown that this language necessarily bars the claim. The fourth cause of action is expressly based on an alleged breach of a “complementary cohort” promise in attachment A to the contract that Zhang alleges was breached. It is not apparent from the face of the FAC (including exhibit 1) that the release language necessarily bars the fourth cause of action.

Defendants' demurrer to the fourth cause of action on the ground that it fails to state sufficient facts is overruled.

Fifth Cause of Action

"The elements of fraud are (1) the defendant made a false representation as to a past or existing material fact; (2) the defendant knew the representation was false at the time it was made; (3) in making the representation, the defendant intended to deceive the plaintiff; (4) the plaintiff justifiably relied on the representation; and (5) the plaintiff suffered resulting damages." (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 792, citation omitted.) Fraud must be pleaded with specificity. General or conclusory allegations are insufficient. A plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. In the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made. (*Id.* at p. 793.) The specificity requirement serves two purposes. The first purpose is to give notice to the defendant with sufficiently definite charges. The second is to permit a court to weed out meritless fraud claims on the basis of the pleadings; thus, the pleading should be sufficient to enable the court to determine whether, on the facts pleaded, there is any foundation, *prima facie* at least, for the charge of fraud. (*Ibid.*)

The fifth cause of action is not alleged with sufficient particularity. It refers to misrepresentations, but does not describe them in detail. It also seeks punitive damages from defendants (both of whom are corporate entities), but the only individual identified as making statements to Zhang is an alleged "Mandarin-speaking marketing agent" named "Vivian." To seek punitive damages against a corporation, a complaint must allege that an officer, director, or managing agent of the corporation was either personally responsible for the allegedly despicable conduct or that an officer, director, or managing agent of the corporation: (1) had advanced knowledge of the despicable conduct and consciously disregarded it; or (2) authorized or ratified the despicable conduct. (Civ. Code, § 3294, subd. (b).) A managing agent is someone who, like a corporate officer or director, exercises "substantial discretionary authority over significant aspects of a corporation's business" and policies. (*White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 577-78.) "An individual must be in a corporate policymaking position in order to be considered a managing agent for purposes of imposing punitive damages liability on the employer." (*Myers v. Trendwest Resorts, Inc.* (2007) 148 Cal.App.4th 1403, 1437.) The FAC does not sufficiently allege that "Vivian" or anyone else was an officer, director, or managing agent.

Defendants' demurrer to the fifth cause of action on the ground that it fails to state sufficient facts is sustained with leave to amend.

CONCLUSION

Defendants' demurrer to the FAC based on uncertainty is overruled.

Defendants' demurrer to the fourth cause of action on the ground that it fails to state sufficient facts is overruled. Defendants' demurrer to the first, second, third, and fifth causes of action on the ground that they fail to state sufficient facts is sustained with leave to amend.

An amended complaint must be filed and served no later than July 7, 2026. The court does not grant leave to add any additional parties or causes of action.

The court will prepare the order.

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